ORDINANCE NO. 554

AN ORDINANCE CLOSING AND VACATING WEST FOURTH STREET IN THE CITY OF RECTOR, ARKANSAS

WHEREAS, a Petition was duly filed with the City of Rector asking the City of Rector to vacate and abandon all that portion of street indicated on the attached exhibit and known as West Fourth Street, and

WHEREAS, after due notice as required by law, the council has, at the time and place mentioned in the notice, heard all persons desiring to be heard on the question and has ascertained that the street has heretofore been dedicated to the public use as a street herein described; has not actually been used by the public generally for a period of at least five (5) years subsequent to this petition, that all owners of the property abutting upon the portion of the street to be vacated have filed with their council their written consent to the abandonment; and that public interest and welfare will not be adversely affected by the abandonment of the street, that a notice has not only been published in the local circulation, but also a notice has been posted on the area to be vacated and abandoned, posted for no less than 15 days.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS:

SECTION 1. The City of Rector Arkansas releases, vacates, and abandons its rights, together with the rights of the public generally, in and to the street designated as follows:

West Fourth Street, Rector Arkansas

SECTION 2. A copy of this ordinance duly certified by the City Clerk or Town Recorder shall be filed in the office of the recorder of the county and recorded in the deed records of the county.

SECTION 3. This Ordinance shall take effect and be in force from and after it's passage.

PASSED AND APPROVED on this 7th day of July, 2014.

Mayor David Freeman

ATTEST:

City Clerk, Shelia Dale

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Melba Mack